

HOUSE No. 3109

The Commonwealth of Massachusetts

PRESENTED BY:

Carlos González

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to creating the massachusetts against discrimination fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/16/2025</i>
<i>Orlando Ramos</i>	<i>9th Hampden</i>	<i>4/9/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/22/2025</i>

HOUSE No. 3109

By Representative González of Springfield, a petition (accompanied by bill, House, No. 3109) of Carlos González for legislation to establish voluntary contribution check-off boxes on state tax returns to provide financial assistance to the Massachusetts Commission Against Discrimination. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2813 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to creating the massachusetts against discrimination fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 10 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 35SSS the following section:-

3 Section 35TTT. There shall be established and set up on the books of the commonwealth
4 a separate fund, to be known as the Massachusetts Against Discrimination Fund. The fund shall
5 be used by the commission against discrimination to offset costs associated with its investigation,
6 prosecution and adjudication of claims of unlawful discrimination, and to assist with its training
7 of public and private entities and individuals to prevent and remediate unlawful discrimination
8 consistent with sections one through ten of chapter 151B. The commission may use the fund for

necessary and reasonable administrative and personnel costs related to the specific purposes of the fund.

The fund shall consist of all revenues received by the commonwealth pursuant to the voluntary check-off donation indicated on the department of revenue's annual income tax return authorized by section 6O of chapter 62 and from public and private sources as gifts, grants and donations authorized by section 3(14) of chapter 151B to further eradicate unlawful discrimination in the commonwealth. Funds deposited and expended from the fund shall not be assessed any indirect costs.

The state treasurer shall deposit amounts in the fund in accordance with section 34 of chapter 29 in a manner that will secure the highest interest rate available consistent with the safety of the fund and with the requirement that all amounts on deposit shall be available for immediate withdrawal at any time. The fund may be expended by the commission against discrimination without further appropriation for the purposes stated in this section and any funds remaining at the end of any fiscal year shall not revert to the General Fund and shall be available for use in subsequent fiscal years.

SECTION 2. Chapter 62 of the General Laws, as so appearing, is hereby amended by inserting after section 6N the following section:-

Section 6O. A person filing an individual or a joint return may voluntarily contribute all or part of any refund to which they are entitled, or may voluntarily add an amount on to any amount due, to be credited to the Massachusetts Against Discrimination Fund established in section 35TTT of chapter 10.

30 A contribution under this section may be made with respect to any taxable year at the
31 time of filing a return of the tax established by this chapter for such taxable year. The
32 commissioner shall prescribe the manner in which the contribution shall be made on the face of
33 the return required by section 5 of chapter 62C; provided, however, that the commissioner shall
34 assure that taxpayers filing any such forms are made clearly aware of their ability to make the
35 contributions provided for by this section.

36 The commissioner shall annually report the total amount designated under this section to
37 the state treasurer, who shall credit such amount to the Massachusetts Against Discrimination
38 Fund.